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ORIGINAL

IN THE

SUPREME COURT OF THE UNITED STATES

October Term, 2000

No. 00-___

WILLIAM ARTHUR KELLY,

PETITIONER.

v.

STATE OF SOUTH CAROLINA,

RESPONDENT.

PETITION FOR WRIT OF CERTIORARI TO THE SUPREME COURT OF SOUTH CAROLINA

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Capital Case

QUESTION PRESENTED

Whether the South Carolina courts' refusal to inform petitioner's sentencing jury that he would never be eligible for parole if the jury sentenced him to life imprisonment rather than to death violated Simmons v. South Carolina, 512 U.S. 154 (1994).

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The opinion of the South Carolina Supreme Court affirming petitioner's conviction and death sentence is reported as State v. Kelly, 540 S.E.2d 851 (S.C. 2001), and is reprinted in the Appendix to this petition at pages 1-18.

JURISDICTION

The judgement of the South Carolina Supreme Court was entered on January 8, 2001. This Court's jurisdiction is invoked pursuant to 28 U.S.C. § 1257(a), petitioner having asserted below and asserting herein deprivation of rights secured by the United States Constitution.

CONSTITUTIONAL AND STATUTORY PROVISIONS INVOLVED

1. This case involves the Fourteenth Amendment to the Constitution of the United States, which provides in pertinent part, "[N]or shall any state deprive any person of life . . . without due process of law . . . ."

2. It also involves S.C. Code Ann. §§ 16-3-10 et seq. (2000 Cum. Supp.), which code sections are reprinted in the Appendix to this petition at pages 21-24.

STATEMENT OF FACTS

On January 1, 1996, a South Carolina statutory amendment took effect that abolished parole or other forms of early release for all prisoners convicted of murder. No. 83, § 10, 1995 S.C. Acts 557, codified as S.C. Code § 16-3-20 (Supp. 1999), App. 21-24. In

capital cases, the same legislation limited the sentencing jury's options to death and life imprisonment without possibility of parole, so long as the jury determined the defendant to be death-eligible by finding the existence of one or more statutory aggravating circumstances. Id.[1]

Just five days after the no-parole amendment took effect, 17-year-old William Arthur Kelly killed a former co-worker at a Kentucky Fried Chicken restaurant during the course of a robbery. He confessed to the crime, and was duly convicted in a South Carolina state court of murder, kidnaping, armed robbery, and possession of a knife during the commission of a violent crime. The facts of the crime, as summarized by the South Carolina Supreme Court, are as follows:

> On the night of January 5, 1996, police officer Stephen Clare drove by the Batesburg KFC and noticed in the parking lot a car running with the driver's door open. Knowing that it was after the restaurant's usual closing time and recognizing the car as belonging to Shirley Shealy, the manager of the KFC, Officer Clare pulled in to investigate. Officer Clare discovered Shealy's body in the KFC; her hands were taped behind her back, and money was strewn all over the floor and stuck to her bloody body.
>
> Kelly, a former KFC employee, had visited the KFC earlier that day. After interviewing KFC employees, Batesburg-Leesville Chief of Police William Oswald attempted to locate Kelly. On January 8, 1996, Kelly's mother called Chief Oswald and told him that Kelly was in Lowell, Massachusetts. Lowell police detectives

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[1]This Court recently considered these amendments to the South Carolina capital sentencing scheme in Shafer v. South Carolina, 532 U.S. ___ (2001).

found Kelly at his sister's residence in Lowell. Kelly, who was seventeen years old at the time, was advised of his *Miranda* rights and made a statement to the detectives admitting that he killed Shealy and stole money from the KFC. Kelly had in his possession money stained with Shealy's blood. In addition, the Lowell detectives retrieved Kelly's bloodstained clothing from his car.

The state sought the death penalty. At the sentencing hearing that followed petitioner's conviction for murder, the prosecution called a series of correctional officers and a former cellmate to establish that petitioner was a dangerous and remorseless prisoner who posed a high risk of escape. By these witnesses' testimony, the state sought to prove the following facts:

- while awaiting trial on the present charges, petitioner refused an order to go into his cell, and backup correctional officers had to be summoned to force him back into his cell, R. 1666;
- petitioner was charged with attempting to escape after it was learned that the mortar around a cinder block in his cell had been scraped away, R. 1713;
- on five occasions, petitioner had talked with a former cellmate about escaping from jail, R. 1741;
- petitioner had on more than one occasion made a "shank," a sharp knife-like tool, which is commonly used as a weapon in jail, R. 1742-43;
- petitioner had devised a plan to take a correctional officer hostage with a shank, and had gone so far as to call the correctional officer to his cell while he held a shank behind his back; R. 1743-44;
- petitioner was searched by a correctional officer who found a toothbrush with a sharp metal object melted into it in petitioner's possession, R. 1760-61, and;
- petitioner behaved in an aggressive manner around other inmates. R. 1770.

After resting its case in aggravation, the prosecution elicited the following additional facts through cross-examination of a defense psychologist:

- petitioner told a mental health counselor that he obsesses about killing people, R. 1927;
- petitioner was part of a prison gang, R. 1948-49; and
- petitioner tortured and killed small animals while growing up. R. 1958-59.

During the charge conference just before closing arguments, petitioner's counsel requested, on the authority of Simmons v. South Carolina, 512 U.S. 154 (1994), that the judge read to the jury the following portion of S.C. Code Ann. § 16-3-20(A):

> "[L]ife imprisonment" means imprisonment until the death of the offender. No person sentenced to life imprisonment is eligible for parole, community supervision, or any early release program, nor is the person eligible to receive any work credits, education credits, good conduct credits, or any other credits that would reduce the mandatory life imprisonment required by law.

Defendant's Request to Charge Number 1, R. 2107, 540 S.E.2d at 856. The prosecutor opposed the request, and asserted that petitioner was not entitled to a Simmons instruction on parole ineligibility because the prosecution was "not going to argue future dangerous[ness]" in its penalty phase summation. R. 2000-01. The prosecutor further explained, "I am not going to talk about this defendant posing a future danger to the public and to society. . . . I didn't put up any psychiatrist or psychologist that said this man will kill again in the future." R. 2002. The trial judge

agreed with the state, ruling as follows:

> The argument [defense counsel] make . . . that the state has made future dangerousness an issue in this matter. I don't believe that the issues that have been presented by the state insofar as the testimony from the prison guards et cetera are such that causes this court to determine that future dangerousness has been made an issue. I think those are issues that go to the defendant's character and characteristics. As a result, I'm going to deny defendant's request for charge number one.

R. 2007.

Defense counsel next requested, based on the court's finding that the state had not made an issue of petitioner's future dangerousness, that the court so instruct the sentencing jury. Specifically, counsel requested an instruction that included the following:

> I have instructed you on the "aggravating" factors that you may consider as reasons to impose the death penalty. I tell you now that you may not consider, as a reason to impose the death penalty, any possibility that the defendant may be dangerous in the future unless he is executed. In this case, there is no evidence that the defendant will be dangerous if he does not receive the death penalty but is instead sentenced to life imprisonment. The state does not contend that he will be dangerous in the future. Therefore, any consideration about future dangerousness is not a legal factor for you to consider as a reason to sentence the defendant to death. This subject may not be considered by you at all in deciding whether the death penalty should be imposed, and should not even be mentioned by you during your deliberations as to the sentence to be imposed.

Defendant's Proposed Instruction No. 2, R. 2108, 540 S.E.2d at 859. The state opposed this instruction, and despite defense counsel's urging that the jury would infer petitioner's future

dangerousness "from the evidence that the state itself put before the jury" absent such an instruction, the trial judge refused to give it. R. 2009.

The prosecutor then delivered his summation. Notwithstanding his assurance that the state would not "argue" petitioner's future dangerousness, he proceeded to characterize petitioner as worse than a serial killer, as a butcher, and as "Billy the Kid."[2] In an effort to minimize the significance of the fact that petitioner was only 17 and had no prior criminal record, the prosecutor argued, "You know something, a person that commits an uncharacteristic and an unpredictable crime is more frightening than a serial killer, more frightening than a career criminal." R. 2029. The prosecutor informed the jury that petitioner's murderousness was an innate and immutable fact: "He was going to kill. It was just a matter of when. Whether he was 17, 27, or 37." R. 2030. Later in his closing, the prosecutor repeatedly referred to petitioner as "Bloody Billy, the butcher of Batesburg." R. 2035. He went on to explain what made petitioner so dangerous: "What did his own witness say. He doesn't have any mental illness. He's intelligent. He's not retarded. He's quick-witted. Doesn't that make

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[2] See Carl R. Green and William R. Sanford, Outlaws and Lawmen of the Wild West: Billy the Kid (1992). Henry Antrim, also known as Billy the Kid, was a notorious Western outlaw and gang leader known for his boyish appearance and extreme ruthlessness. He killed his first victim when he was seventeen, id. at 11, and eventually murdered at least nine people. Id. at 30.

somebody a little more dangerous ---". R. 2037 (emphasis added). Petitioner promptly objected, telling the judge that the prosecutor had "stipulated dangerousness is not an issue," whereupon the prosecutor changed course to suggest that the dangerousness he had just referred to was "---for this lady, this crime on January 5th, doesn't that make him more unpredictable for Shirley Shealy. When you let your guard down and they stab you in the back. That's what we have here." R. 2037. The prosecutor reminded the jury of petitioner's attempted escapes, R. 2038-39, and his plan to take a correctional officer hostage, R. 2039-40, and invited the jury to draw from this evidence the inference that "shanks will be shanks. And murderers will be murderers. And he is the cold-blooded one right over there." R. 2040. Finally he reminded the jury that petitioner had bragged and joked about his crimes while in jail, R. 2043 and concluded with, "Folks, if you don't give him the death penalty, anything less will be a final stab to the memory of Shirley and Sidney Bruce." R. 2044.

In keeping with his pre-argument ruling, the trial judge gave the jury no instructions concerning the non-existence of parole release for murderers sentenced to life imprisonment, stating only that "the terms 'life imprisonment' and 'death sentence' are to be understood in this [sic] ordinary and plain meaning." R. 2069.[3]

[3]Despite this Court's determination in Simmons that such a "plain meaning" instruction does not protect capital defendants against jurors' prejudicial misconceptions concerning parole, 512

While declining to further define life imprisonment, the trial judge did advise the jury that "the death penalty . . . in this state is by electrocution or lethal injection." R. 2068. Following the sentencing instructions, defense counsel renewed her objection to the trial court's failure to charge the jury regarding petitioner's ineligibility for parole, or in the alternative, to charge the jury that petitioner's future dangerousness was not at issue in this case. R. 2082. The judge refused to further instruct the jury, which returned with a binding recommendation of death after deliberating for 43 minutes. R. 2084-87.

On appeal to the South Carolina Supreme Court, petitioner renewed his argument that Simmons v. South Carolina entitled him to advise the jury of his ineligibility for parole had he been sentenced to life imprisonment. State v. Kelly, Brief of Appellant at 2-13; Reply Brief at 3-5. In response, the state relied in part on a since-invalidated rationale for avoiding the effect of Simmons: namely, that Simmons had been rendered inapplicable to South Carolina's capital sentencing scheme by the 1995 statutory amendments. Brief of Respondent at 19-27. The state also argued

U.S. at 169-170 (plurality opinion), 177-78 (O'Connor, J., concurring), the South Carolina Supreme Court continues to require that the instruction be given. Compare State v. Southerland, 447 S.E.2d 862 (S.C. 1994) (Simmons charge not required because prosecutor agreed not to "argue" future dangerousness) with Southerland v. State, 524 S.E.2d 833 (S.C. 1999) (appellate counsel ineffective for failing to raise denial of "plain meaning" instruction).

that the prosecutor had not raised future dangerousness outside of prison as an issue, and that petitioner was therefore not entitled to a Simmons instruction. Brief of Respondent at 27-39.

With one justice dissenting, the South Carolina Supreme Court accepted both of the state's arguments, holding that the record did not satisfy the "future dangerousness" requirement of Simmons, State v. Kelly, 540 S.E.2d 851, 857 (S.C. 2001), and also that the 1995 amendments placed South Carolina's sentencing scheme outside the ambit of Simmons in any event. Id., at 857-58. With regard to future dangerousness, the state court majority first opined that the state's evidence regarding petitioner's attempted escapes, his frequent talk about escaping, and his possession of a shank "simply is not the type of future dangerousness evidence contemplated by Simmons." Id. at 857. While acknowledging that the state had "clearly presented . . . evidence of Kelly's future dangerousness to others within prison," id. at 859, the state supreme court held that this evidence only placed in issue his ability to adapt to prison life, and did not invite the jury to weigh "what is considered 'future dangerousness' under Simmons, i.e. a future danger to society." Id.

To petitioner's argument that the prosecutor had also raised the issue of petitioner's dangerousness directly in his closing argument, the state court responded that "the State consciously avoided any implication of future dangerousness," and did not

explicitly ask the jury to impose the death penalty based on petitioner's future danger to society. Id., at 857. For these reasons, the state court concluded that future dangerousness "was neither a logical inference from the evidence nor was it injected into the case through the State's closing argument." Id.

Petitioner also raised on appeal the trial court's refusal to instruct the jury that petitioner's future dangerousness was not an appropriate sentencing consideration. Brief of Petitioner at 14-16. The state argued that such an instruction would have been improper in this case, because the prosecutor "did not stipulate to the factual issue that future dangerousness was not in issue; instead, he merely agreed not to argue future dangerousness in closing." Brief of Respondent at 42. The South Carolina Supreme Court agreed with the state, holding that the proposed instruction would have improperly precluded the jury from considering the evidence presented by the prosecution to show that petitioner posed a danger within a prison setting. 540 S.E.2d at 859.

On February 7, 2001, the South Carolina Supreme Court granted a motion for stay of execution to allow the filing of this petition for writ of certiorari. App. 27-28.

WHY THE WRIT SHOULD BE GRANTED

1. The South Carolina Supreme Court's holding that Simmons does not apply to the statutory scheme governing petitioner's sentencing hearing has been overruled by this Court's intervening decision in Shafer v. South Carolina, 532 U.S. ___ (2001).

Petitioner's case is yet another in a series of decisions which recently led this Court to observe that "South Carolina has consistently refused to inform the jury of a capital defendant's parole eligibility status." Shafer v. South Carolina, 532 U.S. ___, slip op. at 10 (March 20, 2001). This time, as related above, the state court's refusal rests on alternative holdings. First, the state supreme court held that while the state's evidence and jury argument "clearly" placed in issue petitioner's future dangerousness, they did so in a way that failed to trigger the due process rule of Simmons v. South Carolina, 512 U.S. 154 (1994). And second, the state court reiterated its holding, previously announced in State v. Starnes, 531 S.E.2d 907 (S.C. 2000), and State v. Shafer, 531 S.E.2d 524 (S.C. 2000), that Simmons is in any event inapplicable to the current South Carolina sentencing scheme.

The second of these holdings has now been expressly rejected by Shafer v. South Carolina, 532 U.S. ___ (2001). In Shafer, this Court held that the possibility of a less-than-life sentence in cases where the prosecution fails to establish the defendant's death-eligibility does not remove South Carolina's sentencing scheme from the ambit of Simmons. The state court's decision to

the contrary cannot stand in light of Shafer.

2. Because the prosecution presented both evidence and argument calculated to persuade the jury that petitioner would be dangerous unless executed, Simmons entitled him to an instruction that he would be ineligible for parole if sentenced to life imprisonment.

The South Carolina Supreme Court also held that the state did not place the defendant's future dangerousness in issue as required by Simmons. The present case therefore presents for decision an important question that this Court found to be "not ripe for . . . resolution" in Shafer. Slip op. at 16. The Shafer Court described the issue as follows:

> In the trial court, the prosecutor and defense counsel differed on what it takes to place future dangerousness 'at issue.' The prosecutor suggested that the State must formally argue future dangerousness. Defense counsel urged that once the prosecutor introduces evidence showing future dangerousness, the State cannot avoid a Simmons charge by saying the point was not argued or calling the evidence by another name.

Slip op. at 17 (record citations omitted). Because the South Carolina Supreme Court had not explicitly focused on or resolved this question when it initially rejected Shafer's Simmons claim, this Court remanded his case for further consideration. Here, however, the state court expressly held that petitioner's future dangerousness, as that concept is employed in Simmons, was neither "'a logical inference from the evidence' [nor] 'injected into the case through the State's closing argument'" Shafer v. South Carolina, supra, quoting State v. Kelly, supra, 540 S.E.2d at 857.

This holding was incorrect on both points: the issue of petitioner's future dangerousness was both a logical inference from the state's evidence and was hammered home in closing argument. The state supreme court majority's holding to the contrary reflects a recalcitrant refusal to implement this Court's decision in Simmons, and warrants correction.

A. There is no basis in law or logic for South Carolina's insistence that a convicted murderer's future dangerousness in prison carries no inference of future dangerousness outside of prison.

The state court acknowledged that the prosecutor "clearly presented" both evidence and argument to the effect that petitioner would pose a violent escape risk while incarcerated. 540 S.E.2d at 855-57. According to the state court, however, this explicit claim of future dangerousness did not implicate the Simmons right of rebuttal because the fact of petitioner's parole ineligibility did not directly rebut the state's implication that he would attempt to secrete weapons, take hostages and escape if he was not executed. Id. at 857.

Of course, a dangerous prisoner can fashion shanks, take hostages and try to escape whether or not he is eligible for parole. What the state court overlooked, however, is that evidence of dangerousness in prison is also powerful evidence of dangerousness outside of prison, where the defendant will have much more freedom to indulge whatever violent impulses he may harbor. Evidence that for this particular defendant, not even prison was

effective in curbing his violent tendencies created a particularly strong inference of generalized future dangerousness. So while an accurate instruction on petitioner's parole ineligibility would not have answered the state's claim that he would be dangerous while serving a life sentence in prison, it would have allayed the jury's inevitable concern that petitioner would prove all the more violent should he ever be paroled back into society.[4]

In this connection, the South Carolina Supreme Court may have misunderstood the Court's observation in Simmons concerning the relationship between accurate instructions on parole ineligibility and dangerousness in prison. As the Simmons plurality noted,

> the fact that a defendant is parole ineligible does not prevent the State from arguing that the defendant poses a future danger. The State is free to argue that the defendant will pose a danger to others in prison and that executing him is the only means of eliminating the threat to the safety of other inmates or prison staff. But the State may not mislead the jury by concealing accurate information about the defendant's parole ineligibility.

512 U.S. at 165. Likewise, Justice O'Connor noted that whenever due process entitles a capital defendant to inform the jury of his

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[4]One facet of the state's case--petitioner's alleged hostage-taking plan--was especially likely to have reminded the jury of the obvious relationship between in-prison and out-of-prison dangerousness. The state's claim that petitioner tried to lure a slightly-built female jail officer into his cell while hiding a homemade knife behind his back must have struck the jury as eerily similar to the facts of the Shealy murder itself. If petitioner was inclined to repeat such crimes even while confined in the highly restrictive setting of a county jail, the jury surely reasoned, he would be particularly likely to do so if and when he was released from prison.

parole ineligibility, "the prosecution is free to argue that the defendant would be dangerous in prison." Id. at 177. These passages make clear that proof of a defendant's likely misconduct in prison is a permissible prosecution response to the fact that he will be ineligible for parole, but not, as the prosecutor and the South Carolina Supreme Court seemed to think, a basis for withholding accurate parole information in the first instance.[5]

B. Even if the prosecution's claim of in-prison dangerousness had not entitled petitioner to the protection of *Simmons*, the state's other evidence and argument did.

In addition to his claim that petitioner would likely attempt to stage violent escape attempts in the future if not executed, the prosecutor made other, generalized claims of future dangerousness. Most egregious was his explicit claim during closing argument that petitioner was all the more dangerous because his lack of mental disability rendered his crimes unpredictable. In making this argument ("Doesn't that make somebody a little more dangerous[?]"),

[5]The one federal case cited by the South Carolina Supreme Court on this point appears to reflect a similar misreading of Simmons. In Allridge v. Scott, 41 F.3d 213, 223 (5th Cir. 1994), the court suggested in dictum that "when the state argues that the defendant poses a future danger to everybody, fellow inmates included, then Simmons is inapplicable because whether the defendant is eligible for parole is irrelevant." This suggestion was not necessary to the judgment, because the defendant in Allridge was actually eligible for parole under state law. Outside of South Carolina, no court appears to have upheld the denial of a Simmons instruction solely because the state's proof of the defendant's dangerousness was restricted to the controlled and highly-structured setting of prison.

the prosecutor appears to have momentarily forgotten the "no-dangerousness" charade by which he was attempting to circumvent this court's decision in Simmons: his subsequent attempt to confine this general allegation of future dangerousness to the already-murdered victim seems a hastily-improvised (and somewhat illogical) response to defense counsel's Simmons-related objection.

Nor was this the only explicit reference to generalized future dangerousness in the prosecutor's highly emotional summation. Throughout his closing argument, the prosecutor portrayed petitioner as an incorrigible killer: he evoked the memory of Billy the Kid, tagged petitioner as "Bloody Billy" and as "the Butcher of Batesburg," provided the jury with future-dangerousness aphorisms such as "murderers will be murderers," and expressed the hope that the jurors would never again be so close to a murderer as they were at that moment. He called petitioner "cold-blooded" and "more frightening than a serial killer, more frightening than a career criminal." And this cascade of dangerousness rhetoric was fed not only by the facts of petitioner's crime and post-arrest conduct, but also by prosecution cross-examination about petitioner's obsessive thoughts of killing people, and his history of torturing and killing small animals.

Even if the prosecutor did modulate parts of his summation as a tactic intended to avert a truthful Simmons instruction, his argument raised petitioner's alleged future dangerousness much more

explicitly than anything in Simmons itself. In that case, the sum total of the prosecutor's argument on future dangerousness was as follows:

> The question for the jury, the prosecution argued, was "what to do with [petitioner] now that he is in our midst." The prosecution further urged that a verdict for death would be "a response of society to someone who is a threat. Your verdict will be an act of self-defense."

512 U.S. at 157, 177. These veiled references to Simmons' dangerousness were just that: veiled references. Indeed, two dissenting Justices detected nothing at all in the prosecutor's argument that even referred to Simmons' future behavior: to the dissenters, the "in-our-midst" passage referred only to Simmons' alleged attempt to blame his crimes on his childhood environment, while the "self-defense" reference was merely an appeal for a calm and dispassionate societal response to Simmons' brutal crimes, rather than a sentence based on anger or emotion. 512 U.S. at 181-82 (Scalia, J., dissenting). If the prosecutor's argument in Simmons sufficed to place Simmons' dangerousness in issue, so did the much more explicit cross-examination and argument here.

C. The applicability of *Simmons* should not depend on prosecutors' creativity in manipulating the elusive distinction between evidence of character and evidence of future dangerousness.

In denying petitioner's request for a Simmons instruction, the trial judge ruled that the state's evidence of future dangerousness actually went to petitioner's "character and characteristics."

This purported distinction between bad character and dangerousness does find support in prior South Carolina decisions, see, e.g., State v. Young, 459 S.E.2d 84, 87 n.4 (S.C. 1994), but this Court's cases are to the contrary. California v. Ramos, 463 U.S. 992, 1006 n.20 (1983) ("[A] . . . jury's evaluation of the defendant's future dangerousness may rest on lay testimony about the defendant's character and background and the inferences to be drawn therefrom"); Ramdass v. Angelone, 120 S.Ct. 2113, 2122 (2000) ("To demonstrate Ramdass' evil character and his propensity to commit violent acts in the future, the prosecutor used Ramdass' prior criminal conduct. . . ."). In this context, moreover, the distinction is meaningless. When the prosecution seeks to prove that a teenaged murderer has exhibited unpredictable and extreme violence, cannot be rehabilitated, lacks remorse, and behaves violently in jail, it is trying to prove that his character is one of persistent and violent criminality--which is to say, that he is dangerous and will remain so. The defendant's right to inform the jury that he will never be released from prison does not depend on whether this portrayal is labeled "dangerousness" or "character," because in this setting the two terms mean the same thing. See Skipper v. South Carolina, 476 U.S. 1, 7 (1986) (rejecting South Carolina's effort to distinguish between capital defendant's "past good conduct to prove good character and use of the same evidence to establish future good conduct in prison.").

South Carolina's resistance to this Court's due process holding in Simmons has continued too long. Virtually alone among the nation's 40 death penalty jurisdictions, see Shafer v. South Carolina, supra, slip op. at 10, n. 4, South Carolina continues to devise new rationales for its unfair and unconstitutional refusal to inform sentencing juries of the alternative to the death penalty that state law provides. By refusing to acknowledge the state's obvious injection of the issue of future dangerousness into petitioner's sentencing hearing, the South Carolina Supreme Court has sought, in effect, to vitiate the Simmons rule. Unless corrected by this Court, the precedent established by this case will authorize South Carolina prosecutors who wish to evade Simmons to do so by the simple expedient of giving a new name to the state's case on the issue of dangerousness. The Court should not permit such persistent disregard of one of its constitutional precedents, in this or any other case.

CONCLUSION

For the foregoing reasons, the writ should be granted.

Respectfully submitted,

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540 S.E.2d 851
343 S.C. 350
(Cite as: 540 S.E.2d 851)

Supreme Court of South Carolina.

The STATE, Respondent,
v.
William Arthur KELLY, Appellant.

No. 25226.

Heard Sept. 20, 2000.
Decided Jan. 8, 2001.

Defendant was convicted in Circuit Court, Lexington County, Gary E. Clary, J., of crimes of murder, kidnapping, armed robbery, and possession of a knife during the commission of a violent crime, and was sentenced to death. Defendant appealed. The Supreme Court, Waller, J., held that: (1) probative value of murder victim's pregnancy outweighed its prejudicial effect; (2) trial court was warranted in denying requested parole ineligibility instruction; (3) trial court was warranted in denying absence of dangerousness instruction; (4) State's questions of witness, including "what did I tell you" improperly bolstered witness' credibility, but was harmless error; (5) testimony that victim's child said "a bad man had killed his mommy" was not hearsay.

Affirmed.

Pleicones, J., dissented and concurred in part in separate opinion.

West Headnotes

[1] Homicide k164
203k164

Probative value of murder victim's pregnancy outweighed its prejudicial effect, where State's theory of case was that defendant planned his crimes, and because he knew victim was pregnant and particularly vulnerable, jury could infer that defendant had consciously selected a "perfect victim," making it less probable that he committed voluntary manslaughter.

[2] Criminal Law k338(7)
110k338(7)

"Unfair prejudice" for purposes of rule permitting exclusion of relevant evidence if its probative value is substantially outweighed by the danger of unfair prejudice means an undue tendency to suggest decision on an improper basis, such as an emotional one.

[3] Criminal Law k338(1)
110k338(1)

[3] Criminal Law k1153(1)
110k1153(1)

Trial court is given broad discretion in ruling on questions concerning the relevancy of evidence, and its decision will be reversed only if there is a clear abuse of discretion.

[4] Homicide k11
203k11

"Malice" is the wrongful intent to injure another and indicates a wicked or depraved spirit intent on doing wrong.

[5] Homicide k33

203k33

"Voluntary manslaughter" is the unlawful killing of a human being in sudden heat of passion upon sufficient legal provocation.

[6] Sentencing and Punishment k1780(3)
350Hk1780(3)

For a defendant to be entitled to a parole ineligibility instruction during penalty phase of murder prosecution, two prongs must be met: (1) State must put the defendant's future dangerousness in issue, and (2) the only available alternative sentence to death is life imprisonment without possibility of parole.

[7] Sentencing and Punishment k1780(3)
350Hk1780(3)

During penalty phase of capital murder prosecution, defendant's future dangerousness was neither logical inference from evidence nor injected into case through State's closing argument, so as to support parole ineligibility instruction, where evidence showed that defendant was an escape threat, rather than future danger to general public, and State's argument that defendant was worse than a serial killer, and "murderers will be murderers," indicated death penalty was appropriate primarily as retribution for heinous nature of murder of victim. U.S.C.A. Const.Amend. 14.

[8] Sentencing and Punishment k1780(3)
350Hk1780(3)

Parole ineligibility instruction informs the jury that by rejecting the death penalty, a defendant will spend the rest of his natural life in prison.

[9] Sentencing and Punishment k1780(3)
350Hk1780(3)

Parole ineligibility instruction should not, and does not, apply when as a matter of law another sentence other than death or life without parole is available to a capital defendant.

[10] Sentencing and Punishment k1780(3)
350Hk1780(3)

During penalty phase of capital murder prosecution, potential 30-year mandatory minimum sentence for capital murder existed, so as to defeat defendant's argument that he was entitled to parole ineligibility instruction because only alternative to death sentence was life imprisonment without parole, given inappropriateness of presuming that in certain cases jury will always find particular statutory aggravating circumstance.

[11] Criminal Law k769
110k769

Purpose of instructions is to enlighten the jury and to aid it in arriving at a correct verdict.

[12] Criminal Law k814(2)
110k814(2)

Law to be charged to the jury is determined by the evidence presented at trial.

[13] Criminal Law k814(3)
110k814(3)

Trial court should not give jury instructions which do not fit the facts of the case as such charges may tend to confuse the jury.

[14] Sentencing and Punishment k1780(3)
350Hk1780(3)

In penalty phase of capital murder prosecution, trial court was warranted in denying defendant's request for absence of dangerousness instruction, where State would not argue that defendant was danger to public at large, but rather that defendant presented future danger to others in prison.

[15] Sentencing and Punishment k1780(2)
350Hk1780(2)

State is permitted to argue that a capital defendant might pose a future danger to those within prison.

[16] Sentencing and Punishment k1780(2)
350Hk1780(2)

[16] Sentencing and Punishment k1789(9)
350Hk1789(9)

Assistant solicitor's questions "what did I tell you" and "did I tell you to tell the truth," improperly bolstered witness' credibility during penalty phase of capital murder prosecution, but nevertheless, questions were harmless error, given that defendant cross-examined witness about his prior criminal record which included grand larceny, burglary and forgery convictions, and elicited witness's acknowledgment that he was federal inmate, who wished to have sentence reduced.

[17] Criminal Law k720(5)
110k720(5)

Because a jury must make its own assessment on the credibility of witnesses, it is inappropriate for the State to assure the jury of a government witness's credibility.

[18] Sentencing and Punishment k1766
350Hk1766

During sentencing phase of capital murder case, State's witness' testimony that murder victim's child said "a bad man had killed his mommy" was not hearsay, since testimony was not introduced to prove that a bad man killed victim, but instead, was offered to show impact murder had victim's young child and rest of her family. Rules of Evid., Rule 801(c).

***852** Assistant Appellate Defender Robert M. Dudek of South Carolina Office of Appellate Defense, of Columbia, for appellant.

Attorney General Charles M. Condon, Chief Deputy Attorney General John W. McIntosh, Assistant Deputy Attorney General Donald J. Zelenka, Assistant Attorney General S. Creighton Waters, all of Columbia; and Solicitor Donald V. Myers, of Lexington, for respondent.

***853** WALLER, Justice.

A jury convicted appellant William Kelly of murder, kidnapping, armed robbery, and possession of a knife during the commission of a violent crime. Kelly was sentenced to death for murder, thirty years consecutive for armed robbery, and five years consecutive for possession of a knife during the commission of a violent crime. This case consolidates his direct appeal with the mandatory review provisions of S.C.Code Ann. § 16-3-25 (1985). We affirm.

FACTS

On the night of January 5, 1996, police officer Stephen Clare drove by the Batesburg KFC and noticed in the parking lot a car running with the driver's door open. Knowing that it was after the restaurant's usual closing time and

recognizing the car as belonging to Shirley Shealy, the manager of the KFC, Officer Clare pulled in to investigate. Officer Clare discovered Shealy's body in the KFC; her hands were taped behind her back, and money was strewn all over the floor and stuck to her bloody body.

Kelly, a former KFC employee, had visited the KFC earlier that day. After interviewing KFC employees, Batesburg-Leesville Chief of Police William Oswald attempted to locate Kelly. On January 8, 1996, Kelly's mother called Chief Oswald and told him that Kelly was in Lowell, Massachusetts. Lowell police detectives found Kelly at his sister's residence in Lowell. Kelly, who was seventeen years old at the time, was advised of his *Miranda* [FN1] rights and made a statement to the detectives admitting that he killed Shealy and stole money from the KFC. Kelly had in his possession money stained with Shealy's blood. In addition, the Lowell detectives retrieved Kelly's bloodstained clothing from his car.

FN1. *Miranda v. Arizona*, 384 U.S. 436, 86 S.Ct. 1602, 16 L.Ed.2d 694 (1966).

Kelly was indicted for murder, kidnapping, armed robbery, and possession of a knife during the commission of a violent crime. At trial, the forensic pathologist who performed the autopsy testified that Shealy was stabbed thirty-one times and her neck was cut from ear to ear. She bled to death. At the time of her death, Shealy was 23 weeks pregnant. The jury convicted Kelly on all charges.

In the sentencing phase, the trial court instructed the jury on five statutory aggravating circumstances, to wit, that the murder was committed while in the commission of: (1) kidnapping; (2) burglary; (3) robbery while armed with a deadly weapon; (4) larceny with use of a deadly weapon; and (5) physical torture. *See* S.C.Code Ann. § 16-3-20(C) (Supp.1999). The jury was charged on three statutory mitigating circumstances: (1) the defendant had no significant history of prior criminal conviction involving the use of violence against another person; (2) the age of the defendant at the time of the crime; and (3) the defendant was below the age of eighteen at the time of the crime. *Id.* The jury found all five aggravating circumstances and recommended the death penalty. Accordingly, the trial court imposed a sentence of death for the murder conviction.

ISSUES

1. Did the trial court err by refusing to redact from Kelly's statement references to Shealy's pregnancy?

2. Did the trial court err by refusing to charge the jury on parole ineligibility?

3. Did the trial court err by refusing to charge the jury that future dangerousness was not at issue?

4. Was the testimony of Matthew McCormack improperly bolstered by the State?

5. Did the trial court err by allowing testimony from Shealy's sister about statements made by Shealy's son?

1. FAILURE TO REDACT REFERENCES TO VICTIM'S PREGNANCY

Kelly raises only one issue regarding the guilt phase of his trial. He argues that the trial court erred by not redacting from his confession references to Shealy's pregnancy. We disagree.

Kelly gave the Lowell police a written statement which the State introduced at trial. In his statement, Kelly confessed to slitting Shealy's throat and stabbing her repeatedly. Basically, Kelly's explanation for why he *854 killed Shealy was that his attack was in response to Shealy's request for sex. He stated that while he worked at the KFC, Shealy would "always" proposition him sexually. Kelly stated that on January 5, 1996, he went to the KFC after closing time and saw Shealy in the office. According to Kelly, Shealy again propositioned him for sex, grabbed him, and asked him not to leave. He stated that he duct-taped Shealy's hands behind her back so she would not touch him. Kelly said that as he went to leave, Shealy got her hands free, grabbed him and started hitting him. Kelly stated that he then took out his knife, slit her throat and continued to stab her while she kept grabbing at him. Kelly told the Lowell police that Shealy then fell to the floor and was gasping for air. To keep her from getting up, Kelly said that he again taped her hands behind her back.

[1] Kelly made two references to Shealy's pregnancy in his statement. First, he stated that he "did know that Shirley was pregnant." Second, Kelly stated that Shealy asked him "to stay and have sex with her" and that she told him "since she was pregnant already" he could not get her pregnant if they had sex.

At the outset of the guilt phase, Kelly moved to exclude any evidence that Shealy was pregnant. The State informed the trial court that it planned on introducing Kelly's statement which, as detailed above, included references to the pregnancy. Kelly then moved to redact those references. The trial court denied the motion. With the exception of Kelly's statement, the State did not introduce any evidence about Shealy's pregnancy during the guilt phase of the trial. Kelly presented no witnesses in his defense. At Kelly's request, the jury was instructed on voluntary manslaughter.

In the State's guilt phase closing argument, Shealy's pregnancy was mentioned twice without objection. The State argued that Kelly had "the perfect victim. He's got a pregnant lady. Is she going to do what he says? Yes, ma'am. Yes, sir." The State noted the pathologist's testimony that there were no defensive wounds and no blood on Shealy's hands. The State therefore argued that Kelly's statement that Shealy's hands were free during the attack was not credible. Specifically, the State argued that if her hands were free, "What is she going to do? She's going to be covering up. She's going to be trying to avoid it. She's pregnant."

Kelly contends that the trial court should have redacted his statement to remove the references to Shealy's pregnancy because the evidence was not relevant, or, alternatively, the probative value of this evidence was outweighed by its unfairly prejudicial impact. We disagree.

[2][3] Evidence is relevant and admissible if it has any tendency to make the existence of any fact that is of consequence to the determination of the action more probable or less probable than it would be without the evidence. Rules 401, 402, SCRE. Nevertheless, relevant evidence may be excluded if its probative value is substantially outweighed by the danger of unfair prejudice. Rule 403, SCRE. Unfair

prejudice means an undue tendency to suggest decision on an improper basis, such as an emotional one. *State v. Alexander*, 303 S.C. 377, 382, 401 S.E.2d 146, 149 (1991) (citation omitted). The trial court is given broad discretion in ruling on questions concerning the relevancy of evidence, and its decision will be reversed only if there is a clear abuse of discretion. *Id.* at 380, 401 S.E.2d at 148.

[4][5] The jury was instructed on both murder and voluntary manslaughter. [FN2] Thus, there was an issue on the presence or absence of malice. *See State v. Gandy*, 283 S.C. 571, 573, 324 S.E.2d 65, 66-67 (1984) (voluntary manslaughter is distinguished from murder because "the vital element of malice is missing") *implicitly overruled on other grounds by Casey v. State*, 305 S.C. 445, 409 S.E.2d 391 (1991); S.C.Code Ann. §§ 16-3-10, 16-3-50 (1985 & Supp.1999). " 'Malice' is the wrongful intent to injure another and indicates a wicked or depraved ***855** spirit intent on doing wrong." *State v. Kelsey*, 331 S.C. 50, 62, 502 S.E.2d 63, 69 (1998).

FN2. Murder is "the killing of any person with malice aforethought, either express or implied." S.C.Code Ann. § 16-3-10 (1985). Voluntary manslaughter is the unlawful killing of a human being in sudden heat of passion upon sufficient legal provocation. *E.g., State v. Johnson*, 333 S.C. 62, 508 S.E.2d 29 (1998); *see also* S.C.Code Ann. § 16-3-50 (1985) (manslaughter is "the unlawful killing of another without malice").

We believe the evidence of Shealy's pregnancy was relevant to the issue of intent, i.e., whether Kelly acted with malice. The State's theory of the case was that Kelly planned his crimes. [FN3] Because Kelly knew Shealy was pregnant, and thus, particularly vulnerable, the jury could infer that Kelly had consciously selected a "perfect victim." Such evidence of planning certainly negates voluntary manslaughter which requires a showing of provocation. Additionally, although the evidence of Shealy's pregnancy came directly from Kelly's own statement, this evidence tended to refute Kelly's version of how the attack occurred. Therefore, Kelly's references to the pregnancy made it less probable that he committed voluntary manslaughter. *See* Rule 401, SCRE. Moreover, the fact that Kelly killed a pregnant woman, in our opinion, "indicates a wicked or depraved spirit intent on doing wrong." *State v. Kelsey, supra.* The evidence was, therefore, probative on the issue of whether Kelly acted with malice.

FN3. For example, the State established that the type of latex gloves and duct tape used in the attack were not used by the KFC and that they were used at the McDonald's where, at the time of his crimes, Kelly was working as a cook.

Kelly argues that this evidence undeniably had an emotional impact on the jury, and thus should have been excluded because it was unfairly prejudicial. As discussed above, the evidence was relevant to the only real issue in the guilt phase-the presence or absence of malice. Accordingly, we believe the probative value of the evidence outweighed its prejudicial effect. *Compare State v. Garner*, 304 S.C. 220, 403 S.E.2d 631 (1991) (prejudicial effect of evidence of other crimes outweighs its probative value when purpose for which it is admitted is *not* a contested issue) *with State v. Simmons*, 310 S.C. 439, 427 S.E.2d 175 (1993) (probative value of other-crimes evidence outweighed its prejudicial effect where the issue of intent was a contested one), *reversed on other grounds by Simmons v. South Carolina*, 512 U.S. 154, 114 S.Ct. 2187, 129 L.Ed.2d 133 (1994). [FN4]

FN4. Additionally, we note that the manner in which the evidence was introduced minimized its prejudicial effect. The State did not elicit testimony about Shealy's pregnancy from any witness in the guilt phase. The only evidence admitted on the fact came in through Kelly's statement. Likewise, in the State's guilt phase closing argument, Shealy's pregnancy was mentioned only twice.

We hold that the trial court did not abuse its discretion in admitting evidence of Shealy's pregnancy in the guilt phase. *State v. Alexander, supra.* Accordingly, Kelly's convictions are affirmed.

2. REFUSAL TO GIVE PAROLE INELIGIBILITY INSTRUCTION

Kelly argues that the trial court erred in the sentencing phase when it refused to instruct the jury that he would be ineligible for parole if sentenced to life. Kelly contends that since the State presented evidence of Kelly's future dangerousness, due process and *Simmons v. South Carolina*, 512 U.S. 154, 114 S.Ct. 2187, 129 L.Ed.2d 133 (1994), required the parole ineligibility charge. We hold that *Simmons* does not apply to this case, and therefore, the trial court correctly declined to give the instruction.

In the sentencing phase, the State presented several witnesses who testified about Kelly's actions while he was incarcerated at the Lexington County Detention Center. The jail administrator testified that an attempted escape charge had been filed against Kelly because a mortar joint around a cinder block in his cell had been gouged out. [FN5] Matthew McCormack, who had twice been Kelly's cellmate at the jail, testified that he and Kelly often spoke of escaping and that Kelly had, at one point, taken action on an escape plan. McCormack stated that Kelly made a shank and planned to take a female correctional officer hostage. Although Kelly called the correctional officer to their cell, McCormack stated that Kelly backed out of going through with the plan. The State also questioned correctional officer Mark Wharton who testified that he discovered a shank in Kelly's possession. Finally, Edward Bryant, ***856** who had been in jail with Kelly, testified that he heard Kelly talk about escape. In addition, Bryant testified that Kelly bragged about his crime, requested that he be called "KFC," and walked around with a cup which had a drawing of a chicken with its head cut off and a knife on it.

FN5. On cross-examination, Kelly emphasized he was only one of three inmates housed in that cell and it had not been proven he was the one who actually had dug out the mortar around the cinder block.

At the conclusion of the sentencing phase, Kelly requested the following jury charge:

> I charge you that the term "life imprisonment" means imprisonment until the death of the offender. No person sentenced to life imprisonment is eligible for parole, community

supervision, or any early release program, nor is the person eligible to receive any work credits, education credits, good conduct credits, or any other credits that would reduce the mandatory life imprisonment required by law.

See S.C.Code Ann. § 16-3-20 (Supp.1999). The State objected to the charge and stated that because it was not going to argue future dangerousness, the charge was not required by *Simmons*. Ruling that the State's evidence went to Kelly's character and characteristics and not to future dangerousness, the trial court denied the request to charge. [FN6]

FN6. The jury was given a plain meaning charge.

In closing argument, the State argued that the death penalty was "the punishment that fits the crime." The State argued that Kelly had planned his crime and that he was a "master murderer." Because Kelly had no prior record, the State argued that a person who commits "an unpredictable crime is more frightening than a serial killer, more frightening than a career criminal.... You kind of trust them a little bit." Further, the State argued that Kelly was intelligent, quick-witted and did not have any mental illness. Thus, the State argued that made Kelly "a little more dangerous ... for this lady, this crime on January the 5th, doesn't that make him more unpredictable for Shirley Shealy." Finally, the State recounted, over objection, the evidence regarding Kelly's attempted escapes from jail and that he had a shank. The State then argued that "murderers will be murderers. And he is the cold-blooded one right over there."

On appeal, Kelly contends that: (1) the State's evidence about escape attempts, possession of a shank, and his behavior in jail raised the issue of future dangerousness; (2) the State argued future dangerousness in its closing; and therefore, (3) the trial court erred in refusing to charge the jury regarding Kelly's parole ineligibility. Kelly argues he was denied due process because the jury instruction was mandated by *Simmons*.

In *Simmons*, a plurality of the United States Supreme Court held that when a capital defendant would be ineligible for parole if sentenced to life in prison and the State argues the defendant's future dangerousness as a basis for imposing the death penalty, the defendant is entitled to have the jury informed of his parole ineligibility through either defense argument or instruction by the trial judge. *Simmons, supra.* [FN7] The *Simmons* Court explained that the "Due Process Clause does not allow the execution of a person 'on the basis of information which he had no opportunity to deny or explain.' " *Id.* at 161, 114 S.Ct. at 2192, 129 L.Ed.2d at 141 (quoting *Gardner v. Florida*, 430 U.S. 349, 362, 97 S.Ct. 1197, 1207, 51 L.Ed.2d 393, 404 (1977)). Thus, the Court ruled that the "State may not create a false dilemma by advancing generalized arguments regarding the defendant's future dangerousness while, at the same time, preventing the jury from learning that the defendant never will be released on parole." *Id.* at 171, 114 S.Ct. at 2198, 129 L.Ed.2d at 147.

FN7. Shortly after *Simmons* was decided, this Court held that the trial judge *must* charge a capital defendant's parole ineligibility when future dangerousness is at issue and either the defendant requests such a charge or the jury inquires about the meaning of "life imprisonment." *State v. Southerland*, 316 S.C. 377, 387, 447 S.E.2d 862, 868 (1994), *cert. denied*, 513 U.S. 1166, 115 S.Ct. 1136, 130 L.Ed.2d 1096 (1995), *overruled on other grounds State v. Chapman*, 317 S.C. 302, 454 S.E.2d 317 (1995).

[6] To be entitled to a *Simmons* charge, two prongs must be met. First, the State must put the defendant's future dangerousness in issue. Second, the only available alternative sentence to death is life imprisonment without possibility of parole. *Id.* at 178, 114 S.Ct. at 2201, 129 L.Ed.2d at 151 (O'Connor, J., concurring); *see also State v. McWee*, 322 S.C. 387, 391-92, 472 S.E.2d 235, ***857** 238 (1996), *cert. denied*, 519 U.S. 1061, 117 S.Ct. 695, 136 L.Ed.2d 618 (1997) (due process requires parole ineligibility charge "only if appellant's future dangerousness was an issue and only if appellant would have been ineligible for parole upon the imposition of a life sentence"). Kelly has not met either prong of the *Simmons* test.

[7] First, we agree with the trial court that the State's evidence at sentencing did not implicate future dangerousness. Evidence that Kelly took part in escape attempts and carried a shank simply is not the type of future dangerousness evidence contemplated by *Simmons*. [FN8] The underlying principle of the *Simmons* holding is that if evidence of future dangerousness is presented by the State, the defendant must be allowed to *rebut* this evidence by showing that he will never be eligible for parole, i.e., that he will never *legally* be let out of prison. In the instant case, however, Kelly argues that the evidence he is an escape threat (and thus a risk to the general public) required that the jury be instructed on parole ineligibility. The flaw in Kelly's argument is that a *Simmons* charge would not rebut this evidence. Telling a jury that a convicted murderer will never be eligible for parole simply does not respond to the State's evidence that he presents an escape risk.

FN8. When the State argues future dangerousness, it "urge[s] the jury to sentence the defendant to death so that he will not be a danger to the public *if released* from prison." *Simmons*, 512 U.S. at 163, 114 S.Ct. at 2193, 129 L.Ed.2d at 142 (emphasis added).

In our opinion, the evidence presented by the State in the penalty phase was designed to show that Kelly would not adapt to prison life because in jail he had been caught carrying a weapon and planning or participating in escape attempts. Kelly was allowed to rebut this evidence, through both cross- examination of the State's witnesses and the witnesses presented in his defense. [FN9] Thus, Kelly was given the opportunity to deny or explain the State's evidence, in accordance with due process requirements.

FN9. Kelly presented expert testimony from a clinical psychologist, Dr. Steven Shea, and a correctional management consultant, James Aiken. Dr. Shea testified that Kelly could adjust to prison. Aiken testified that Kelly could be "adequately managed, housed and secured without endangerment in a correctional facility within the South Carolina Department of Corrections."

Kelly further contends that the State argued future dangerousness to the jury and thus misled the jury in violation of his due process rights. Specifically, Kelly argues that the State's

argument that Kelly is worse than a serial killer and that "murderers will be murderers" constituted argument on future dangerousness. We disagree. A fair reading of the State's closing argument shows that the State consciously avoided any implication of future dangerousness. Not once did the State suggest to the jury that it should impose the death penalty because Kelly would be a future danger to the general public. *Cf. Simmons, supra* (where the Court found the following arguments to be generalized argument of future dangerousness: "what to do with [petitioner] now that he is in our midst" and that the death penalty would be "a response of society to someone who is a threat. Your verdict will be an act of self-defense"). Instead, the State argued Kelly should be given the death penalty primarily as retribution for the heinous nature of the murder and because of the status of Shealy, the pregnant victim.

We hold that future dangerousness was not an issue in this case. It was neither a logical inference from the evidence nor was it injected into the case through the State's closing argument.

Additionally, the second prong of the *Simmons* test was not met. The *Simmons* rule is applicable when the only alternative to a death sentence is life imprisonment without parole. *See Simmons*, 512 U.S. at 178, 114 S.Ct. at 2201, 129 L.Ed.2d at 151 (O'Connor, J., concurring); *State v. McWee*, 322 S.C. at 391-92, 472 S.E.2d at 238. Because Kelly was tried under the new sentencing scheme which became effective on January 1, 1996, he could have been sentenced to either (1) death; (2) life without the possibility of parole; or (3) a mandatory minimum thirty year sentence. *See* S.C.Code Ann. § 16-3- 20 (Supp.1999). The mandatory minimum sentence of thirty years is available only if ***858** the jury returns with no finding of aggravating circumstances. *Id.*

[8][9] This Court recently held that *Simmons* is inapplicable under the new sentencing scheme because life without the possibility of parole is not the only legally available sentence alternative to death. *State v. Starnes*, 340 S.C. 312, 531 S.E.2d 907 (2000); *State v. Shafer*, 340 S.C. 291, 531 S.E.2d 524 (2000), *cert. granted*, ---- U.S. ----, 121 S.Ct. 30, 147 L.Ed.2d 1053 (2000). The logic behind this holding is that a *Simmons* charge is designed to answer the State's evidence that the defendant will be a future danger to society by telling the jury that if sentenced to life in prison, the defendant will never be paroled. In other words, a *Simmons* charge informs the jury that by rejecting the death penalty, the defendant will spend the rest of his natural life in prison. However, if another sentence other than life without parole is available to the defendant as an alternative to the death penalty, then a *Simmons* charge would actually mislead the jury by representing that the defendant would never be released from prison, when in fact, a thirty-year sentence is a potential sentence for the defendant. *See Starnes*, 340 S.C. at 329, 531 S.E.2d at 916 ("Contrary to a sentence of life imprisonment without parole, a mandatory minimum thirty year sentence does not rebut the State's argument regarding the defendant's threat to society."). Accordingly, *Simmons* should not, and does not, apply when *as a matter of law* another sentence other than death or life without parole is available to a capital defendant. [FN10]

FN10. We note that the second prong of the *Simmons* test may be satisfied under certain circumstances. For example, if the recidivist statute is applied, there will be no third alternative sentence as a matter of law. *See* S.C.Code Ann. § 17-25-45 (Supp.1999) (imposing mandatory sentence of life imprisonment without parole where defendant has prior convictions of a most serious nature). If section 17-25-45 is invoked and future dangerousness is argued, *Simmons* is applicable because the only available sentences are life without parole or death. In the instant case, however, Kelly had no previous convictions, and therefore, section 17-25-45 does not affect our analysis of this issue.

[10] Nonetheless, Kelly contends that the thirty-year minimum sentence was not available to him because the jury would have violated its oath if it had not found at least one aggravating circumstance. Thus, Kelly argues that *Simmons* applies to the instant case. In *Starnes*, however, we stated that it is "inappropriate to assume the jury will find a statutory aggravating circumstance." *Id.* at 330, 531 S.E.2d at 917. Although we granted Kelly's motion to argue against the recent precedent set in *Starnes* and *Shafer*, we adhere to that precedent and hold it is not appropriate to presume that in certain cases a jury will always find particular statutory aggravating circumstances. *Cf. State v. Riddle*, 301 S.C. 68, 71, 389 S.E.2d 665, 667 (1990) (where this Court found error in submitting to resentencing jury convictions from previous trial as evidence of aggravating circumstances; the Court stated that the convictions from the guilt phase were not "binding upon the resentencing jury" as it was the sentencing "jury's responsibility to find the existence, *or not*, of a statutory aggravating circumstance") (emphasis added). Therefore, Kelly cannot satisfy the second prong of the *Simmons* test.

We hold the trial court correctly refused to give the jury a *Simmons* charge. [FN11]

FN11. Kelly also contends that the requested instruction was required because of James Aiken's testimony regarding good time credits. Aiken, Kelly's expert witness on prison management, testified on direct examination that prisoners may be sanctioned for disciplinary infractions by "taking good time away." On cross-examination, the State questioned Aiken further, and Aiken stated that he was speaking hypothetically, not about this particular case. Kelly argues that the testimony about good time credits raised the inference that he would be released from prison, and therefore, he should have been able to rebut the evidence with the parole ineligibility charge. We believe Kelly's contention is without merit. Aiken's testimony merely discussed, in general terms, internal prison procedures for dealing with disciplinary violations committed by inmates. Kelly was not denied the opportunity to rebut this evidence; therefore, his due process rights were not compromised. Moreover, we note his own counsel elicited this testimony on direct examination. *State v. Washington*, 315 S.C. 108, 110, 432 S.E.2d 448, 449 (1992) (appellant may not complain about the admission of evidence elicited by his own counsel).

***859 3. REFUSAL TO CHARGE THAT FUTURE DANGEROUSNESS WAS NOT**

AT ISSUE

After his request on the parole ineligibility charge was denied, Kelly requested the following jury charge:

> I have instructed you on the "aggravating" factors that you may consider as reasons to impose the death penalty. I tell you now that you may not consider, as a reason to impose the death penalty, any possibility that the defendant may be dangerous in the future unless he is executed. In this case, there is no evidence that the defendant will be dangerous if he does not receive the death penalty but is instead sentenced to life imprisonment. The state does not contend that he will be dangerous in the future. Therefore, any consideration about future dangerousness is not a legal factor for you to consider as a reason to sentence the defendant to death. This subject may not be considered by you at all in deciding whether the death penalty should be imposed, and should not even be mentioned by you during you deliberations as to the sentence to be imposed.
>
> At the same time, you should understand that your consideration of reasons not to impose the death penalty is unlimited. Thus, if you find from the evidence that the defendant's future behavior is likely to be good, that would be a proper factor for you to consider as a reason to sentence him to life imprisonment rather than the death penalty.

Because the State agreed not to argue future dangerousness, Kelly maintains that the trial court erred in failing to give the charge. We disagree.

[11][12][13] "The purpose of instructions is to enlighten the jury and to aid it in arriving at a correct verdict." *State v. Leonard*, 292 S.C. 133, 137, 355 S.E.2d 270, 273 (1987). The law to be charged to the jury is determined by the evidence presented at trial. *E.g., State v. Lee*, 298 S.C. 362, 380 S.E.2d 834 (1989). Furthermore, a trial court should not give jury instructions which do not fit the facts of the case as such charges may tend to confuse the jury. *Id.; see also State v. Leonard, supra* (a trial court commits error when it provides instructions which are calculated to confuse or mislead the jury).

[14][15] We hold that the trial court correctly denied the requested charge because the evidence did not support the charge as written. The State is permitted to argue that a capital defendant might pose a future danger to those within prison. This type of evidence and argument is distinguishable from what is considered "future dangerousness" under *Simmons*, i.e., a future danger to society. *Cf. State v. Rogers*, 320 S.C. 520, 466 S.E.2d 360 (1996) (where the Court indicated that if prosecution had argued only that defendant posed a danger to other prison inmates, and had not included danger to society argument, then *Simmons* would not apply); *Allridge v. Scott*, 41 F.3d 213 (5th Cir.1994), *cert. denied*, 514 U.S. 1108, 115 S.Ct. 1959, 131 L.Ed.2d 851 (1995) (where the court noted that *Simmons* is inapplicable where the State argues that the defendant poses a danger to everybody, including fellow inmates) (citing *Simmons*, 512 U.S. at 165 n. 5, 114 S.Ct. at 2194 n. 5). Therefore, the requested charge was clearly incorrect because it instructed the jury "there is no evidence that the defendant will be dangerous if he does not receive the death penalty but is instead sentenced to life imprisonment." This charge thus would have precluded the jury from considering evidence of Kelly's future danger to others within prison, evidence which was clearly presented by the State and appropriate for the jury to consider.

Moreover, the charge as written is extremely confusing. It simply would not have aided the jury in making its sentencing determination. *State v. Leonard, supra.*

Accordingly, the trial court did not err by denying this request to charge.

4. BOLSTERING OF STATE'S WITNESS

Kelly argues that the State improperly bolstered Matthew McCormack's testimony thereby impermissibly vouching for McCormack's credibility. We agree.

As recounted above in Issue 2, McCormack had been Kelly's cellmate. McCormack testified ***860** about Kelly making a shank and how he said he was going to use it to abduct a female correctional officer. In addition, McCormack testified that Kelly had frequently spoken about his crimes. McCormack stated that Kelly told him that he and Shealy had planned to rob the KFC but that Shealy had turned on him during the robbery. McCormack testified that Kelly told him that he came up behind Shealy and cut her throat and had tried to decapitate her.

Toward the end of McCormack's direct examination, the following colloquy took place:

> [Assistant Solicitor]: What did I tell you that I absolutely required regarding your testimony to this jury today?
>
> [McCormack]: Uh--excuse me?
>
> [Assistant Solicitor]: Did I tell you to tell the truth to this jury--
>
> [McCormack]: Of course.

At that point, Kelly objected on the grounds that the assistant solicitor was bolstering the witness's testimony and was making himself a witness. After the trial court overruled the objection, the assistant solicitor continued:

> [Assistant Solicitor]: What did I tell you regarding your testimony to this jury today? The only thing the State wanted from your testimony was what?
>
> [McCormack]: The truth.

On cross-examination, Kelly questioned McCormack about his prior criminal record which included grand larceny, burglary and forgery convictions. Kelly also elicited testimony from McCormack, who was a federal inmate, regarding how in the federal system an inmate could get a sentence reduction if he provides helpful testimony to the government. McCormack acknowledged that the potential for a sentence reduction was "one of [his] main reasons for" testifying against Kelly.

[16] Kelly argues that the State's questioning impermissibly bolstered McCormack's credibility because it placed the prestige of the government behind McCormack, a jailhouse informant. Kelly also maintains that the assistant solicitor effectively became a witness in the case and vouched for McCormack's credibility.

In *United States v. Walker*, 155 F.3d 180 (3d Cir.1998), the Court of Appeals for the Third Circuit discussed generally the concept of vouching:

> Vouching constitutes an assurance by the prosecuting attorney of the credibility of a Government witness through personal knowledge or by other information outside of the testimony before the jury.... A prosecutor's vouching for the credibility of a government witness raises two concerns: (1) such comments can convey the impression that evidence not presented to the jury but

known to the prosecutor, supports the charges against the defendant and can thus jeopardize the defendant's right to be tried solely on the basis of the evidence presented to the jury; and (2) the prosecutor's opinion carries with it the imprimatur of the Government and may induce the jury to trust the Government's judgment rather than its own view of the evidence.

Id. at 184 (citations omitted).

Typically, vouching occurs when the prosecution comments on a witness's credibility in its opening statement or closing argument. *See id.* at 185- 87 (discussion of Third Circuit case law on vouching). In the instant case, however, Kelly's argument is targeted at the State's questioning of McCormack. At least one court has held that this type of questioning is improper. *See Mitchell v. State*, 549 P.2d 96 (Okla.App.1976) (where the prosecutor asked witness whether they had "talked about this case" and witness responded "Yes, sir. You instructed me to tell the truth," the court found improper bolstering).

[17] In our opinion, the State's questions served to improperly bolster McCormack's credibility. *Id.* Although perhaps not technically vouching, the manner of questioning [FN12] by the State raises the second concern outlined by the *Walker* court: the jury could have perceived that the assistant solicitor ***861** held the opinion that McCormack was, in fact, telling the truth. Thus, McCormack's testimony carried with it the imprimatur of the government, and this bolstering may have induced the jury to trust the State's judgment about McCormack. Because a jury must make its own assessment on the credibility of witnesses, it is inappropriate for the State to assure the jury of a government witness's credibility. Accordingly, the trial court erred in overruling Kelly's objection.

FN12. Although the assistant solicitor did not comment that he had personal knowledge McCormack was telling the truth or had outside evidence indicating the truthfulness of McCormack's testimony, the assistant solicitor improperly phrased his questions in the first person. ("What did *I* tell you *that I absolutely required* regarding your testimony to this jury today?" and "Did *I* tell you to tell the truth to this jury?") (emphasis added).

Nevertheless, we believe that this error was harmless beyond a reasonable doubt. *See State v. Gaskins*, 284 S.C. 105, 127, 326 S.E.2d 132, 145 (erroneous admission of evidence in sentencing phase reviewed for harmless error), *cert. denied*, 471 U.S. 1120, 105 S.Ct. 2368, 86 L.Ed.2d 266 (1985), *overruled in part on other grounds State v. Torrence*, 305 S.C. 45, 406 S.E.2d 315 (1991). In our opinion, Kelly's cross-examination effectively impeached McCormack's credibility by eliciting information about his motive for testifying. Moreover, given the overwhelming evidence of aggravation in this case, we do not believe that the State's bolstering of McCormack materially influenced the jury's decision to impose the death penalty.

Accordingly, because the error was harmless, Kelly is not entitled to resentencing on this issue.

5. TESTIMONY FROM VICTIM'S SISTER

Kelly argues that the trial court erroneously admitted hearsay testimony from Shealy's sister Cynthia Slade. We disagree.

During the sentencing phase, the State called Slade who presented victim impact testimony. The State questioned Slade about Shealy's son Alex, who was six years old when Shealy was killed:

> [Solicitor]: Have you seen Alex since his mother was murdered?
> [Slade]: Yes, sir.
> [Solicitor]: Has there been a change in him?
> [Slade]: Oh, yeah.
> [Solicitor]: Does he talk about it?
> [Slade]: Yeah. He talks about it a lot [sic]. We were at a wedding and he told basically everybody--

Kelly's attorney objected on the basis of hearsay. The trial court overruled the objection. When the State asked what Alex had said, Slade responded:

> He told everybody in the--at the wedding that a bad man had killed his mommy.

[18] Kelly argues Slade's testimony that Alex said "a bad man had killed his mommy" was impermissible hearsay and should have been excluded.

The South Carolina Rules of Evidence define hearsay as "a statement, other than one made by the declarant while testifying at the trial or hearing, offered in evidence to prove the truth of the matter asserted." Rule 801(c), SCRE. By that definition, we believe Slade's testimony was not hearsay because it was not offered to prove the truth of the matter asserted. That is, the evidence was not introduced to prove that a bad man killed Shealy. Instead, the testimony clearly was offered to show the impact the murder had on Shealy's young child and the rest of her family. As such, it was properly offered as victim impact evidence. *See, e.g., State v. Byram*, 326 S.C. 107, 485 S.E.2d 360 (1997) (victim's sister's testimony about the effect of the victim's death upon herself and the victim's three children was relevant for the jury to meaningfully assess appellant's moral culpability and blameworthiness).

Accordingly, the trial court correctly allowed this evidence to be admitted.

Kelly's remaining issue [FN13] is affirmed pursuant to Rule 220(b)(2) and the following authorities: *State v. Johnson*, 338 S.C. 114, 525 S.E.2d 519, *cert. denied*, --- U.S. ----, 121 S.Ct. 104, 148 L.Ed.2d 62 (2000) (autopsy photograph may be relevant to showing physical torture); *State v. Ard*, 332 S.C. 370, 505 S.E.2d 328 (1998) (the determination of the relevancy, materiality, and admissibility of a photograph is left to the sound discretion of the trial judge); *State v. Kornahrens*, 290 ***862** S.C. 281, 350 S.E.2d 180 (1986), *cert. denied*, 480 U.S. 940, 107 S.Ct. 1592, 94 L.Ed.2d 781 (1987) (photographs which depict the bodies of the murder victims in substantially the same condition in which the defendant left them are admissible in sentencing phase of capital trial).

FN13. Kelly argues that the trial court erred in admitting two of the State's photographic exhibits. As to Exhibit 116, an autopsy photograph, we note Kelly maintains that the exhibit "shows the fetus in the decedent's stomach." On the contrary, it is clear from both the photograph and the testimony at trial that this exhibit depicts Shealy's gaping neck wound.

CONCLUSION

Kelly's convictions and sentences are affirmed.

We have conducted the proportionality review required by S.C.Code Ann. § 16-3-25(C) (1985). The death sentence in this case is proportionate to that in similar cases and is neither excessive nor disproportionate to the crime. *State v. Ard*, 332 S.C. 370, 505 S.E.2d 328 (1998); *State v. Hicks*, 330 S.C. 207, 499 S.E.2d 209, *cert. denied*, 525 U.S. 1022, 119 S.Ct. 552, 142 L.Ed.2d 459 (1998); *State v. Powers*, 331 S.C. 37, 501 S.E.2d 116, *cert. denied*, 525 U.S. 1043, 119 S.Ct. 597, 142 L.Ed.2d 539 (1998).

AFFIRMED.

TOAL, C.J., MOORE and BURNETT, JJ., concur.

PLEICONES, J., dissenting and concurring in part in a separate opinion.

PLEICONES, Justice, dissenting and concurring.

I concur in the majority opinion with the exception of that portion which affirms the trial judge's refusal to give the requested parole ineligibility instruction. I would, therefore, affirm the convictions of the appellant, and reverse and remand for a new sentencing proceeding. It is my view that a *per se* rule should be adopted, requiring that, when requested, a parole ineligibility instruction be given to the jury deciding sentencing in a capital case.

In this case, appellant requested the following charge at the end of the sentencing phase:

> I charge you that the term "life imprisonment" means imprisonment until the death of the offender. No person sentenced to life imprisonment is eligible for parole, community supervision, or any early release program, nor is the person eligible to receive any work credits, education credits, good conduct credits, or any other credits that would reduce the mandatory life imprisonment required by law.

The majority affirms the trial judge's denial of this legally correct charge which is taken virtually verbatim from S.C.Code Ann. § 16-3-20(A) (Supp.1999). The majority relies upon our decisions in *State v. Starnes*, 340 S.C. 312, 531 S.E.2d 907 (2000), and *State v. Shafer*, 340 S.C. 291, 531 S.E.2d 524 (2000), [FN1] which hold that most capital defendants in South Carolina are no longer entitled to a parole ineligibility charge under *Simmons v. South Carolina*, 512 U.S. 154, 114 S.Ct. 2187, 129 L.Ed.2d 133 (1994). Under *State v. Starnes, supra*, and *State v. Shafer, supra, Simmons* did not apply because appellant would not necessarily have received a sentence of life imprisonment had the jury failed to find a statutory aggravating circumstance. [FN2] Appellant, as the majority points out, could have received a mandatory minimum sentence of at least thirty years without the possibility of parole.

> FN1. Appellant was granted permission to argue against these precedents. The United States Supreme Court has granted certiorari in *Shafer, supra*, --- U.S. ----, 121 S.Ct. 30, 147 L.Ed.2d 1053 (2000).

> FN2. Appellant had no previous convictions of either "serious" or "most serious" offenses. *See* S.C.Code Ann. § 17-25-45 (Supp.1999) (defining these offenses).

Further, the majority adheres to this Court's recent ruling in *State v. Starnes, supra*, that it is inappropriate to presume that juries will always find the existence of aggravating circumstance.

I propose a rule that is not dependent upon the shifting grounds of constitutional interpretation, is simple to apply, and has the result of fully informing the jury of its options. We have taken great pains to advise the jury that it is the final sentencing authority in a capital case. [FN3] That being the case, the jury should be equipped with the same ***863** knowledge in terms of sentencing as a sentencing judge. In my opinion, we should take this opportunity to clarify and simplify the rule for charging capital juries on the defendant's ineligibility for parole or early release.

> FN3. A trial judge must, of course, still make an affirmative finding that the death penalty was warranted under the evidence, and that it was not the result of passion, prejudice, caprice, or any other arbitrary factor. S.C.Code Ann. § 16-3-20(C)(b) (Supp.1999).

Under our current capital sentencing scheme, if the defendant has been previously convicted of a "serious" or "most serious" offense [FN4] he faces only two possible sentences: death, or life imprisonment without possibility of parole. S.C.Code Ann. § 17-25-45 (Supp.1999).

> FN4. S.C.Code Ann. § 17-25-45(C)(1) and (2) (Supp.1999).

If the defendant has not been previously convicted of a "serious" or "most serious" offense, the potential sentences depend upon the jury's finding of at least one statutory aggravating circumstance. If the jury finds a statutory aggravating circumstance, the only sentencing choice to be made is whether to impose the death penalty or life imprisonment without possibility of parole. Should the jury fail to find the existence of a statutory aggravating circumstance, the sentence rests in the discretion of the trial judge. Her choices are life imprisonment, or a mandatory minimum term of at least thirty years. The defendant is parole ineligible in either circumstance. [FN5]

> FN5. § 16-3-20(A) and (C)(b) (Supp.1999).

In my opinion, the unique circumstances of a capital case require that the sentencing authority--whether judge or jury--be fully informed with regard to sentencing options, including the convicted offender's parole ineligibility.

I would hold that where requested by the defense, a properly phrased parole ineligibility charge must be given to the jury in a capital case.

The jury would be instructed that should they find the existence, beyond a reasonable doubt, of one of more aggravating circumstances, there would be but two potential punishments: life imprisonment or the death penalty. The jury would further be informed that life imprisonment means until death, and that the defendant would be ineligible for parole or other early release. This is the charge requested by appellant here.

The jury would also be informed that should it fail to find the existence, beyond a reasonable doubt, of at least one statutory aggravating circumstance, the punishment would be solely within the province of the trial judge. The jury would be told that the sentencing options would

be limited to life imprisonment without the possibility of parole, or, assuming the defendant were a non-recidivist, a mandatory minimum of at least thirty years, also without the possibility of parole.

I agree with Justice Blackmun's plurality opinion in *Simmons v. South Carolina, supra,* wherein he discussed the perceptions of most jurors regarding parole:

> It can hardly be questioned that most juries lack accurate information about the precise meaning of 'life imprisonment' as defined by the States.... An instruction directing juries that life imprisonment should be understood in its 'plain and ordinary' meaning does nothing to dispel the misunderstanding reasonable jurors may have about the way in which any particular State defines 'life imprisonment'. *Id.* at 169-70, 114 S.Ct. at 2197, 129 L.Ed.2d at 146. The *Simmons* plurality noted that, at the time it was decided, twenty-six states empowered juries in capital sentencing and provided for life imprisonment without parole as an alternative punishment. Of those states, seventeen required that the jury be expressly informed of the defendant's parole ineligibility. *See id* at n. 7. The Commonwealth of Virginia recently joined that number with its Supreme Court's decision in *Yarbrough v. Commonwealth,* 258 Va. 347, 519 S.E.2d 602 (1999). In my opinion, this State should likewise adopt the practice.

In its search for an appropriate sentence, the jury should have the benefit of clear and accurate instructions regarding its options. A "plain meaning" instruction does not adequately inform the jury. Without the knowledge that, if aggravators are found, a life sentence is not subject to being reduced by parole, or any other method of early release, the jury is likely to speculate unnecessarily on the possibility of early release, and impose ***864** a sentence of death based upon "fear rather than reason." *Yarbrough v. Commonwealth, supra, citing Farris v. Commonwealth,* 209 Va. 305, 307, 163 S.E.2d 575, 576 (1968). A parole ineligibility charge would eliminate any speculation. Since such a charge was not given in this case despite appellant's request, I would reverse the sentence and remand for a new sentencing proceeding.

END OF DOCUMENT

The Supreme Court of South Carolina

State of South Carolina, Respondent,

v.

William Arthur Kelly, Petitioner.

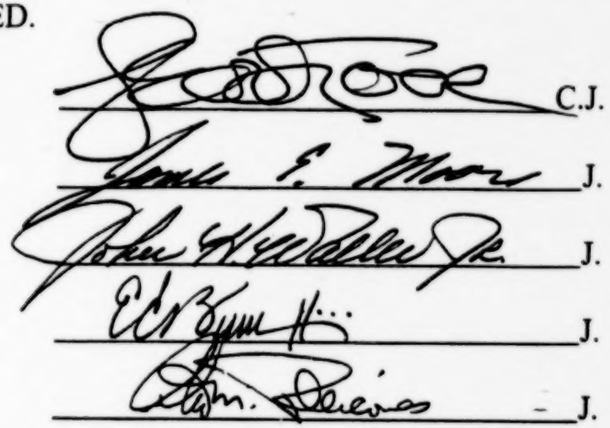
ORDER

This Court affirmed petitioner's conviction and death sentence on direct appeal. State v. Kelly, Op. No. 25226 (S.C. Sup. Ct. filed January 8, 2001) (Shearouse Adv. Sh. No. 1 at 13). Petitioner now asks this Court to stay his execution while he seeks a writ of certiorari from the United States Supreme Court.

Petitioner's request for a stay of execution is granted. This stay shall remain in effect to the extent provided by this Court in In re Stays of

Execution in Capital Cases, 321 S.C. 544, 471 S.E.2d 140 (1996).

IT IS SO ORDERED.



C.J.

J.

J.

J.

J.

Columbia, South Carolina

February 7, 2001

CODE OF LAWS OF SOUTH CAROLINA 1976 ANNOTATED
TITLE 16. CRIMES AND OFFENSES
CHAPTER 3. OFFENSES AGAINST THE PERSON
ARTICLE 1. HOMICIDE

Current through End of 2000 Reg. Sess. and Extra Session of 1999.

§ 16-3-20. Punishment for murder: separate sentencing proceeding to determine whether sentence should be death or life imprisonment.

(A) A person who is convicted of or pleads guilty to murder must be punished by death, by imprisonment for life, or by a mandatory minimum term of imprisonment for thirty years. If the State seeks the death penalty and a statutory aggravating circumstance is found beyond a reasonable doubt pursuant to subsections (B) and (C), and a recommendation of death is not made, the trial judge must impose a sentence of life imprisonment. For purposes of this section, "life imprisonment" means until death of the offender. No person sentenced to life imprisonment pursuant to this section is eligible for parole, community supervision, or any early release program, nor is the person eligible to receive any work credits, education credits, good conduct credits, or any other credits that would reduce the mandatory life imprisonment required by this section. No person sentenced to a mandatory minimum term of imprisonment for thirty years pursuant to this section is eligible for parole or any early release program, nor is the person eligible to receive any work credits, education credits, good conduct credits, or any other credits that would reduce the mandatory minimum term of imprisonment for thirty years required by this section. Under no circumstances may a female who is pregnant be executed so long as she is pregnant or for a period of at least nine months after she is no longer pregnant. When the Governor commutes a sentence of death to life imprisonment under the provisions of > Section 14 of Article IV of the Constitution of South Carolina, 1895, the commutee is not eligible for parole, community supervision, or any early release program, nor is the person eligible to receive any work credits, good conduct credits, education credits, or any other credits that would reduce the mandatory imprisonment required by this subsection.

(B) When the State seeks the death penalty, upon conviction or adjudication of guilt of a defendant of murder, the court shall conduct a separate sentencing proceeding. In the proceeding, if a statutory aggravating circumstance is found, the defendant must be sentenced to either death or life imprisonment. If no statutory aggravating circumstance is found, the defendant must be sentenced to either life imprisonment or a mandatory minimum term of imprisonment for thirty years. The proceeding must be conducted by the trial judge before the trial jury as soon as practicable after the lapse of twenty-four hours unless waived by the defendant. If trial by jury has been waived by the defendant and the State, or if the defendant pleaded guilty, the sentencing proceeding must be conducted before the judge. In the sentencing proceeding, the jury or judge shall hear additional evidence in extenuation, mitigation, or aggravation of the punishment. Only such evidence in aggravation as the State has informed the

defendant in writing before the trial is admissible. This section must not be construed to authorize the introduction of any evidence secured in violation of the Constitution of the United S ates or the State of South Carolina or the applicable laws of either. The State, the defendant, and his counsel are permitted to present arguments for or against the sentence to be imposed. The defendant and his counsel shall have the closing argument regarding the sentence to be imposed.

(C) The judge shall consider, or he shall include in his instructions to the jury for it to consider, mitigating circumstances otherwise authorized or allowed by law and the following statutory aggravating and mitigating circumstances which may be supported by the evidence:

(a) Statutory aggravating circumstances:
(1) The murder was committed while in the commission of the following crimes or acts:
(a) criminal sexual conduct in any degree;
(b) kidnapping;
(c) burglary in any degree;
(d) robbery while armed with a deadly weapon;
(e) larceny with use of a deadly weapon;
(f) killing by poison;
(g) drug trafficking as defined in > Section 44-53-370(e), > 44-53-375(B), > 44-53-440, or > 44-53-445;
(h) physical torture; or
(i) dismemberment of a person.
(2) The murder was committed by a person with a prior conviction for murder.
(3) The offender by his act of murder knowingly created a great risk of death to more than one person in a public place by means of a weapon or device which normally would be hazardous to the lives of more than one person.
(4) The offender committed the murder for himself or another for the purpose of receiving money or a thing of monetary value.
(5) The murder of a judicial officer, former judicial officer, solicitor, former solicitor, or other officer of the court during or because of the exercise of his official duty.
(6) The offender caused or directed another to commit murder or committed murder as an agent or employee of another person.
(7) The murder of a federal, state, or local law enforcement officer, peace officer or former peace officer, corrections employee or former corrections employee, or fireman or former fireman during or because of the performance of his official duties.
(8) The murder of a family member of an official listed in subitems (5) and (7) above with the intent to impede or retaliate against the official. "Family member" means a spouse, parent, brother, sister, child, or person to whom the official stands in the place of a parent or a person living in the official's household and related to him by blood or marriage.
(9) Two or more persons were murdered by the defendant by one act or pursuant to one scheme or course of conduct.

(10) The murder of a child eleven years of age or under.
(11) The murder of a witness or potential witness committed at any time during the criminal process for the purpose of impeding or deterring prosecution of any crime.
(b) Mitigating circumstances:
(1) The defendant has no significant history of prior criminal conviction involving the use of violence against another person.
(2) The murder was committed while the defendant was under the influence of mental or emotional disturbance.
(3) The victim was a participant in the defendant's conduct or consented to the act.
(4) The defendant was an accomplice in the murder committed by another person and his participation was relatively minor.
(5) The defendant acted under duress or under the domination of another person.
(6) The capacity of the defendant to appreciate the criminality of his conduct or to conform his conduct to the requirements of law was substantially impaired.
(7) The age or mentality of the defendant at the time of the crime.
(8) The defendant was provoked by the victim into committing the murder.
(9) The defendant was below the age of eighteen at the time of the crime.
(10) The defendant had mental retardation at the time of the crime. "Mental retardation" means significantly subaverage general intellectual functioning existing concurrently with deficits in adaptive behavior and manifested during the developmental period.

The statutory instructions as to statutory aggravating and mitigating circumstances must be given in charge and in writing to the jury for its deliberation. The jury, if its verdict is a recommendation of death, shall designate in writing, and signed by all members of the jury, the statutory aggravating circumstance or circumstances which it found beyond a reasonable doubt. The jury, if it does not recommend death, after finding a statutory aggravating circumstance or circumstances beyond a reasonable doubt, shall designate in writing, and signed by all members of the jury, the statutory aggravating circumstance or circumstances it found beyond a reasonable doubt. In nonjury cases the judge shall make the designation of the statutory aggravating circumstance or circumstances. Unless at least one of the statutory aggravating circumstances enumerated in this section is found, the death penalty must not be imposed.

Where a statutory aggravating circumstance is found and a recommendation of death is made, the trial judge shall sentence the defendant to death. The trial judge, before imposing the death penalty, shall find as an affirmative fact that the death penalty was warranted under the evidence of the case and was not a result of prejudice, passion, or any other arbitrary factor. Where a statutory aggravating circumstance is found and a sentence of death is not recommended by the jury, the trial judge shall sentence the defendant to life imprisonment as provided in subsection (A). Before dismissing the jury, the trial judge shall question the jury as to whether or not it found a statutory aggravating circumstance or circumstances beyond a reasonable doubt. If the jury does not unanimously find any statutory

aggravating circumstances or circumstances beyond a reasonable doubt, it shall not make a sentencing recommendation. Where a statutory aggravating circumstance is not found, the trial judge shall sentence the defendant to either life imprisonment or a mandatory minimum term of imprisonment for thirty years. No person sentenced to life imprisonment or a mandatory minimum term of imprisonment for thirty years under this section is eligible for parole or to receive any work credits, good conduct credits, education credits, or any other credits that would reduce the sentence required by this section. If the jury has found a statutory aggravating circumstance or circumstances beyond a reasonable doubt, the jury shall designate this finding, in writing, signed by all the members of the jury. The jury shall not recommend the death penalty if the vote for such penalty is not unanimous as provided. If members of the jury after a reasonable deliberation cannot agree on a recommendation as to whether or not the death sentence should be imposed on a defendant found guilty of murder, the trial judge shall dismiss such jury and shall sentence the defendant to life imprisonment as provided in subsection (A).

(D) Notwithstanding the provisions of Section 14-7-1020, in cases involving capital punishment a person called as a juror must be examined by the attorney for the defense.

(E) In a criminal action in which a defendant is charged with a crime which may be punishable by death, a person may not be disqualified, excused, or excluded from service as a juror by reason of his beliefs or attitudes against capital punishment unless such beliefs or attitudes would render him unable to return a verdict according to law.

STATE OF SOUTH CAROLINA

IN THE SUPREME COURT OF THE UNITED STATES

October Term, 2000

No. 00-_____

WILLIAM ARTHUR KELLY,

PETITIONER,

V.

STATE OF SOUTH CAROLINA,

RESPONDENT.

CERTIFICATE OF SERVICE

I certify that copies of the petition for writ of certiorari, appendix, and the motion for leave to proceed in forma pauperis in this case have been served upon opposing counsel by mailing copies in envelopes properly addressed with postage prepaid on this 3RD day of April, 2001.

ROBERT M. DUDEK
Attorney at Law

SWORN TO BEFORE me this 3rd day
Of April, 2001.

Sandra B. Kiire (L.S.)
Notary Public for South Carolina
My Commission Expires: February 3, 2005

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Assistant Appellate Defenders

April 3, 2001

Honorable William K. Suter
Clerk
Supreme Court of the United States
1 First Street, N.E.
Washington, DC 20543

Re: William Arthur Kelly v. State of South Carolina

Dear Mr. Suter:

Enclosed are the petition for writ of certiorari and the motion for leave to proceed in forma pauperis in the above-captioned case. The certificate of service is attached to the original petition. Representing the state of South Carolina is S. Creighton Waters, Esquire, of the Office of the Attorney General, Post Office Box 11549, Columbia, South Carolina 29211-1549. His phone number is (803) 734-6305. I represent petitioner William Arthur Kelly, while David I. Bruck is counsel of record. His address is Post Office Box 11744, Columbia, South Carolina 29211. His phone number is (803) 765-1044. The other information required by Rule 29.5 is contained above. If additional information is desired, please contact me.

RECEIVED
APR 5 - 2001
OFFICE OF THE CLERK
SUPREME COURT, U.S.

Sincerely,

Robert M. Dudek
Attorney at Law

RMD\srw

Enclosure

cc: S. Creighton Waters, Esquire